

not appear in court today.

IF DEBTOR KEVIN DEBTOR FAILS TO APPEAR IN PERSON, THE COURT WILL RELEASE BENCH WARRANT TO SHERIFF'S OFFICE FOR SERVICE. REMOTE OR ZOOM APPEARANCE IS NOT ACCEPTABLE.

7. 9:00 AM CASE NUMBER: C24-03265
CASE NAME: CORY GOODRICH VS. FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES**
FILED BY: GOODRICH, CORY JUSTIN
TENTATIVE RULING:

The court grants the motion of Plaintiffs, as prevailing parties in this action brought pursuant to the Song-Beverly Consumer Warranty Act, to an award of attorneys' fees and costs. The court finds the requested fees are reasonable, as is the application of the requested Lodestar Enhancement. The court notes there may be a mathematical or typographical error in the amount prayed for in the Plaintiffs' Notice of Motion and Motion (where the total amount prayed for, \$27,481, did not appear to be mathematically correct), and awards \$37,590.00 in attorneys' fees and \$1,141.75 in costs, the amount stated in the Plaintiffs' Reply at page 8. The fees must be paid to plaintiffs' attorneys within 30 calendar days of service of notice of entry of this order on counsel for the Defendant.

8. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION IN RE: INTERVENE**
FILED BY: MOBILITAS INSURANCE COMPANY
TENTATIVE RULING:

The unopposed motion of Mobilitas Insurance Company ("Mobilitas") to Intervene as a Defendant and as a Cross-Defendant in this action is granted. Mobilitas shall file and serve its Proposed Answer in Intervention to the Complaint and its Proposed Answer in Intervention to the Cross-Complaint within 10 calendar days of this order.

9. 9:00 AM CASE NUMBER: C25-03386

CASE NAME: CECILY TAYLOR VS. STEVE SMITH

*HEARING ON MOTION IN RE: STAY PENDING RESOLUTION OF MOTION TO DISQUALIFY COUNSEL
FILED BY: TAYLOR, CECILY

TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Stay All Further Proceedings Pending Resolution of Motion to Disqualify Counsel ("Motion").

The Motion is **denied** as outlined below.

Factual and Procedural Background

This matter relates to business dealings between the parties. On November 21, 2025, Plaintiff filed the Verified Complaint asserting four causes of action: (1) breach of contract; (2) tortious interference; (3) fraudulent misrepresentation; (4) defamation, and (5) conversion.

Plaintiff obtained a default against Defendant Steve Smith on January 6, 2026. Defendants Smith & Company Restoration Products, Inc., Steve Smith as Trustee of The Brain Trust, and The Brain Trust demurred to the Complaint on January 8, 2026. It is currently scheduled for hearing on July 24, 2026.

On January 28, 2026, Plaintiff filed a Motion to Disqualify Counsel which is set for hearing on May 1, 2026.

On March 11, 2026, Plaintiff filed an *ex parte* application for TRO and Preliminary Injunction. It was denied by the Court on March 16, 2026.

On March 18, 2026, Defendant Steve Smith filed a motion to set aside default currently set for hearing on July 17, 2026.

Plaintiff's Citation to Legal Authority

The Court must begin by noting that it appears that Plaintiff may have relied on using Artificial Intelligence (AI) to assist with preparing her brief. Most, if not all, of the citations are either non-existent or do not stand for the proposition asserted.

Plaintiff's notice indicates that the Court has authority to stay the action under Code of Civil Procedure section 371.5. While the Code of Civil Procedure contains a § 371 and § 372, it does not contain a § 371.5.

The main body of Plaintiff's motion relies on Code of Civil Procedure §§ 128 (a)(3) and 373.5. Plaintiff asserts that § 128 (a)(3) provides that "every court has

the inherent power ‘to issue any order necessary to the exercise of its jurisdiction.’” (Motion at 4:13-16.) Section 128 (a)(3) actually states that the court has the power: “To provide for the orderly conduct of proceedings before it, or its officers.” The language cited by Plaintiff appears nowhere in the statute.

Plaintiff also contends that § 373.5 “expressly authorizes the Court to ‘stay the proceedings in the action or any part thereof’ whenever ‘irreparable injury would result from a continuance of the action.’” (Motion at 4:26-5:1.) Again, neither of those quotations appear in that statute. Instead, § 373.5 pertains to appointment of guardian ad litem where unascertained persons of designated class are interested in property. This has nothing to do with the Court’s inherent power to stay proceedings.

Plaintiff’s citation to case authority fares no better. She cites to *Landis v. North American Co.* (1936) 299 U.S. 248, 254-55 for the proposition that courts may suspend proceedings “for the purpose of justice.” (Motion at 4:16-20.) First off, that quotation appears nowhere in that case. Second, that case discussed the propriety of issuing a stay where a similar action was filed in a completely different venue. That situation does not apply here. Likewise, Plaintiff’s citation to *Mowrer v. Superior Court* (1969) 3 Cal.App.3d 223, 227-28 does not support the parenthetical Plaintiff provides related thereto. That case did not involve a stay but instead dealt with contempt proceedings. Issues not relevant to the current motion.

Finally, Plaintiff cites *Freiberg v. City of Santa Ana* (1985) 167 Cal.App.3d 332, 338 for the proposition that good cause need only show prejudice or inefficiency. (Motion at 5:17-18.) A search for that citation brings up the case of *Barbary Coast Furniture Co. v. Sjolie* (1985) 167 Cal.App.3d 319 – which runs through page 335. The pin cite to page 338 refers to the case *Ciampi v. Red Carpet Corp.* (1985) 167 Cal.App.3d 336. The Court has been unable to locate a case styled as *Freiberg v. City of Santa Ana*.

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held:

[R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: “A fake opinion is not ‘existing law’ and citation to a fake opinion does not provide a non-frivolous ground

for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system.” (citations omitted) *Noland*, supra, 114 Cal. App. 5th at 445.

As noted by the *Nolan* court, it is a fundamental duty of attorneys to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. (*Ibid.*) Failing to do so is sanctionable conduct.

While *Nolan* involves an attorney’s actions in providing false and misleading authority to the court, the same principles apply to non-represented parties. “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*) “Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per.” (*Ibid.*)

“[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants ‘must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.’” (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

The Court therefore issues an Order to Plaintiff Cecily Taylor to appear and show cause, on Friday May 8, 2026 at 9:00 a.m. in Department 32, if cause there be, why the court should not impose monetary sanctions of up to \$1,000 for submitting non-existent, that is, false legal authority to the Court, and for misrepresenting the holdings and content of existing legal authority to the Court. Any response by Plaintiff to this Order to Show Cause must be in writing and must be filed and served on all parties or before noon on May 1, 2026. Plaintiff must check the Court’s website for the tentative rulings for this department on May 7, 2026, after 1:30 p.m. and before 4:00 p.m. The link for the tentative rulings for civil departments is

<https://contracosta.courts.ca.gov/online-services/tentative-rulings>. If Plaintiff wishes to contest the tentative ruling on this order to show cause, she must email this court (dept32@contracosta.courts.ca.gov) before 4:00 p.m. on May 7, 2026 indicating her intent to appear on May 8, 2026 (Zoom appearance is acceptable) and explaining the part of the tentative ruling she wishes to contest. Failure to email the court by 4:00 p.m. on May 7, 2026 means the tentative ruling will become the order of the court.

In addition, the Court is putting Plaintiff on notice that it will not tolerate continued citations to improper or non-existence legal authority. Plaintiff must ensure that all citations are to actual cases and/or statutes, that any quotations exist within the cited authority, and that the authority stands for the proposition asserted. Future failure to file appropriate papers will result in an order to show cause why sanctions should not be issued.

This warning applies to the currently pending motion to disqualify defense counsel. The Court has not reviewed that motion at this time, but if it finds that Plaintiff has failed to provide proper authority it may be inclined to sanction Plaintiff, that is, order the Plaintiff to pay monetary sanctions to the Court. She should make sure that all legal authority is accurate and it would be wise to withdraw the motion and refile it if there are improper citations.

Motion for Stay

It appears that the main concern Plaintiff has in seeking the stay is that the Court rule on the pending motion to disqualify before ruling on the demurrer filed by the entity Defendants. Given the current schedule of the hearings in this matter, this will be the case anyway. The upcoming hearings in this matter are as follows:

- May 1: Motion to Disqualify Counsel
- July 17: Motion to Set Aside Default by Defendant Steve Smith
- July 20: Case Management Conference
- July 24: Demurrer to Complaint

Based on the above, the next hearing is on the motion to disqualify. As such, there is no need to stay the proceedings pending the hearing on that motion.

“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*OTO, L.L.C. v. Kho*

(2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court “explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (*Ibid.* quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

Plaintiff has failed to show that a stay of these proceedings will ‘accommodate the ends of justice’ or promote any judicial efficiency.

Conclusion

Plaintiff’s motion for a stay of the proceedings is **denied**.

The Court issues an Order to Plaintiff Cecily Taylor to appear and show cause, on Friday May 8, 2026 at 9:00 a.m. in Department 32, as described above and sets hearing on the Order to Show Cause for Friday, May 8, 2026 at 9:00 a.m. in Dept. 32.

10. 9:00 AM CASE NUMBER: C25-03717
CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION
HEARING IN RE: AND NTC FOR PRELIMINARY INJUNCTION
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Kristin Owen’s Motion for Preliminary Injunction (“Motion”).

Procedural Background

Plaintiff filed her Complaint for Preliminary and Permanent Injunctions, and for Damages on December 23, 2025. That same date, Plaintiff filed the Motion currently before the Court. Defendant opposes the Motion.

Defendant’s Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

Standard

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving